

Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 811.

In the instant matter, the Complaint sufficiently alleges the existence of a written agreement between the parties, with definite terms. The writing and terms are reflected in the attachment to the Complaint, which indicate, in summary, that the agreement was executed when Defendant used the credit account, and that the terms involved the lending of money by the Plaintiff, and the obligation of the Defendant to repay the money which Plaintiff lent. Further, the Complaint shows that Plaintiff performed their end of the bargain, yet Defendant failed to do so when Defendant did not pay. Moreover, Plaintiff suffered damages of approximately \$13,000.

The Defendant has alleged that the Complaint fails to establish standing. But the Complaint and the attached contract sufficiently demonstrate that the original creditor, Wells Fargo, is also the Plaintiff.

Disposition

Defendant's Demurrer is overruled.

Plaintiff to file Order.

15. 9:00 AM CASE NUMBER: MSL21-02581

CASE NAME: JPMORGAN VS. VAILUU

*HEARING ON MOTION IN RE: MOTION TO SET ASIDE JUDGMENT FILED ON 1/9/26

FILED BY: JPMORGAN CHASE BANK, N.A

***TENTATIVE RULING**

Plaintiff has filed a request to Set Aside a Default Judgment (filed on 9/14/22) and dismiss the matter. There is no service on Defendant, but there is no prejudice in granting the Motion.

Disposition

Plaintiff's Motion to Set Aside Judgment and dismiss the case is granted.

Plaintiff to file Order.

16. 9:00 AM CASE NUMBER: MSL22-00512

CASE NAME: BANK OF AMERICA VS RODRIGUEZ

*HEARING ON MOTION IN RE: FOR ORDER SETTING ASIDE AND VACATING ITS PRIOR ORDER OF DISMISSAL AND FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION FILED BY BANK OF AMERICA, N.A.

FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with process. Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed on the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$12,756.39, plus costs of \$447, plus a first appearance fee, and less any credits for payments received.

The Declaration submitted by Plaintiff indicates: payments of \$750 and \$7,736 (totaling \$8,486), and no appearance fee. It lists costs in addition to the \$447, but this was not a term of the Stipulation.

Thus, the amount owed by Defendant is: $(12,756.39 + 447) - 8,486 = \$4,717.39$.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,717.39.

Plaintiff to file order on Motion, as well as submit Judgment.